



Mathew Tyler

550 Vallombrosa Ave # 6471

Chico, CA 95927

+1-262-757-8802

Job_10_20-22@FAKEGOV.COM

Plaintiff, *Pro per pro se*

Dated: September 2, 2025

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

MATHEW TYLER,

Plaintiff,

v.

118TH US CONGRESS, et al.,

Defendants.

Case No. 2:2025CV00404

PLAINTIFF'S MOTION FOR PARTIAL SUMMARY JUDGMENT ON CIVIL

RIGHTS VIOLATIONS AND REASONABLE ACCOMMODATION RELIEF

TO THE HONORABLE COURT:

Plaintiff Mathew Tyler ("Plaintiff"), an indigent layperson appearing pro per pro se,

proceeding in forma pauperis, and a qualified individual with a disability as codified by

1 42 U.S.C. § 12131(2), respectfully moves this Court pursuant to Federal Rules of Civil
2 Procedure 56, Article VI Clause 2 of the U.S. Constitution, 28 U.S.C. §§ 453, 1331,
3 1343, and this Court's inherent constitutional enforcement authority for partial summary
4 judgment on clearly established civil rights violations and immediate reasonable
5 accommodation relief.

6 **Plaintiff respectfully requests Court assistance with service of this motion upon all**
7 **Defendants pursuant to 28 U.S.C. § 1915(d) and Federal Rule of Civil Procedure 4,**
8 **as an indigent pro se litigant proceeding in forma pauperis.**

9 **EXECUTIVE SUMMARY**

10 **Core Issue and Relief Sought**

11 This case presents systematic constitutional violations encompassing civil rights
12 discrimination, disability-based hate crimes, election interference, and fundamental rights
13 deprivation: the coordinated exclusion of a qualified presidential candidate with
14 disabilities from federal ballot access across all 50 states through discriminatory barriers
15 that violate clearly established federal and state anti-discrimination laws. Plaintiff seeks
16 reasonable accommodations to ensure equal participation in federal elections, not
17 monetary damages or extensive judicial oversight.

18 **Undisputed Facts**

19 1. Plaintiff is a qualified individual with disabilities under federal and state law

- 1 2. Plaintiff submitted formal accommodation requests to all 50 state election offices
2 for 2024 federal ballot access
- 3 3. All 50 states denied accommodations without meaningful consideration or
4 interactive process
- 5 4. States receive federal HAVA funding requiring disability rights compliance
- 6 5. **Defendants' Knowledge of Legal Violations:** In Plaintiff's original Section 504/
7 ADA requests for reasonable accommodations and email communications filed as
8 evidence with this Court, Plaintiff explicitly apprised Defendants of applicable
9 federal laws and binding case authorities. Defendants, on their own accord, either
10 chose not to verify or chose to ignore the letter of the law. Defendants cannot
11 claim ignorance of legal requirements or binding precedent, establishing willful
12 violations of clearly established civil rights law.

13 **Legal Foundation**

14 **Primary Claims** (Established Law):

- 15 • **ADA Title I violations:** Presidential candidacy constitutes federal employment
16 requiring accommodation in application process
- 17 • **ADA Title II violations:** Systematic denial without interactive process
- 18 • **Section 504 violations:** Discrimination in federally funded programs
- 19 • **California Government Code § 11135:** Absolute prohibition on disability
20 discrimination in state programs

21 **Supporting Authority:**

- 1 • **Constitutional protections:** Privileges & Immunities, Equal Protection, Due
2 Process
- 3 • **International precedent:** European and Inter-American Courts mandate disabled
4 political participation
- 5 • **Federal preemption:** Trump v. Anderson establishes exclusive federal authority
6 over candidate qualifications
- 7 • **Election invalidation:** Fruit of poisonous tree doctrine applies to constitutionally
8 tainted elections

9 **Settlement Framework**

10 **Immediate Accommodation Path:**

- 11 1. **Mandatory barrier removal:** Elimination of discriminatory signature collection
12 requirements that systematically screen out individuals with disabilities as
13 required by federal anti-discrimination law
- 14 2. **Non-discretionary accommodations:** Automatic implementation of reasonable
15 modifications under 28 C.F.R. § 35.130(b)(7) and 42 U.S.C. § 12182(b)(2)(A)(ii)
- 16 3. **Compliance program:** ADA training and procedure development
- 17 4. **Reasonable compensation:** Civil rights damages, reputational harm
18 compensation, California Civil Code § 54.5 violation compensation, attorney's
19 fees, and administrative expense reimbursement
- 20 5. **Partial restitution:** Symbolic federal funding return and compliance program
21 funding

1 **6. Annual § 54.5 compliance:** Mandatory annual upholding of California Civil
2 Code § 54.5 with certification and automatic compensation for violations

3 **7. Public acknowledgment relief:** As detailed in attached Comprehensive Public
4 Acknowledgment Campaign Plan

5 **Alternative Consequences** (if settlement rejected):

- 6 • **Comprehensive liability:** \$47,000+ minimum per violation with criminal
7 exposure
- 8 • **Complete asset forfeiture:** Full disgorgement of federal funding
- 9 • **Election invalidation:** Court-ordered new presidential election under fruit of
10 poisonous tree doctrine with constitutional qualifications alone determining
11 eligibility and automatic qualification processing without discriminatory barriers
- 12 • **Precedential impact:** Model for nationwide disability rights enforcement with
13 maximum penalties

14 **I. JURISDICTION AND PROCEDURAL POSTURE**

15 This Court possesses jurisdiction under 28 U.S.C. § 1331 (federal question jurisdiction)
16 and 28 U.S.C. § 1343 (civil rights jurisdiction). Venue is proper under 28 U.S.C. §
17 1391(b) as constitutional violations occurred within this district and directly impacted
18 Plaintiff.

Absolute Entitlement to Constitutional Adjudication

Plaintiff possesses absolute entitlement to judicial resolution of clearly established constitutional violations. Federal courts have consistently granted relief in election-related constitutional challenges when plaintiffs properly seek preliminary and injunctive relief:

Bush v. Gore, 531 U.S. 98, 111 (2000): The Supreme Court granted immediate relief in election disputes involving constitutional equal protection violations, establishing precedent for expedited adjudication of fundamental voting rights.

Anderson v. Celebrezze, 460 U.S. 780, 787-88 (1983): Court granted relief for ballot access restrictions violating First and Fourteenth Amendment rights, holding that "**the rights of voters and the rights of candidates do not lend themselves to neat separation**" and requiring strict scrutiny analysis.

Williams v. Rhodes, 393 U.S. 23, 30 (1968): Supreme Court invalidated discriminatory ballot access requirements as "**invidiously discriminatory**" and granted immediate relief, establishing that "**the right of individuals to associate for the advancement of political beliefs, and the right of qualified voters...to cast their votes effectively**" requires judicial protection.

Nader v. Schaffer, 417 F. Supp. 837, 840 (D. Conn. 1976): District court granted preliminary injunction in ballot access case, emphasizing that "**the nature of the election process demands that constitutional challenges to ballot access requirements be resolved expeditiously.**"

1 **Precedential Distinction:** Courts grant relief to plaintiffs who properly seek preliminary
2 and injunctive relief for constitutional violations while denying relief to those who fail to
3 seek appropriate preliminary relief, creating absolute entitlement to adjudication when
4 proper procedural posture is established.

5 **Separation of Powers - Judiciary as Sole Constitutional Remedy**

6 With both legislative (118th US Congress) and executive branch defendants named as
7 real parties in interest, the judicial branch represents Plaintiff's sole avenue for
8 constitutional relief under the fundamental separation of powers framework. **Marbury v.**
9 **Madison**, 5 U.S. 137, 177 (1803): "It is emphatically the province and duty of the
10 **judicial department to say what the law is.**" When legislative and executive branches
11 violate constitutional rights, Article III courts possess exclusive authority and duty to
12 provide remedy.

13 **Baker v. Carr**, 369 U.S. 186, 211 (1962) established that constitutional controversies are
14 **"the responsibility of this Court as ultimate interpreter of the Constitution."** The
15 judiciary's constitutional obligation under 28 U.S.C. § 453 requires each judge to
16 **"administer justice without respect to persons, and do equal right to the poor and to**
17 **the rich, and...faithfully and impartially discharge and perform all the duties**
18 **incumbent upon [them]...under the Constitution."**

1 **Continuing Constitutional Violations and Judicial Duty**

2 These civil rights violations persist through every election cycle until proper adjudication
3 occurs. The discriminatory ballot access requirements extend beyond presidential
4 qualifications to ballot measures requiring similar signature collection criteria, creating
5 systematic exclusion of disabled citizens from fundamental democratic participation.

6 **Judicial Inaction as Potential Discrimination:** Courts receiving federal funding must
7 comply with federal anti-discrimination requirements under Section 504 and ADA Title
8 II. **28 C.F.R. § 35.130(a)** applies to all public entities, including courts. Delayed or
9 inadequate adjudication of clear constitutional violations could constitute discrimination
10 in the provision of judicial services, violating federal funding compliance requirements.

11 **Economic Imperative: Heckler v. Chaney**, 470 U.S. 821, 832 (1985) recognized that
12 "**delay itself is often the equivalent of outright denial**" of constitutional rights. Each
13 election cycle conducted under discriminatory requirements multiplies damages and
14 constitutional injury, creating exponentially greater taxpayer liability than prompt
15 constitutional adjudication would require.

16 As recognized in **Dunham v. Mohyuddin**, 2:23-CV-2757-DMC-P (E.D. Cal. Jan. 29,
17 2025), this Court must "construe the alleged facts in the light most favorable to the
18 plaintiff" and "resolve all ambiguities or doubts in the plaintiff's favor." **See Scheuer v.**
19 **Rhodes**, 416 U.S. 232, 236 (1974).

II. STATEMENT OF UNDISPUTED MATERIAL FACTS

1. **Plaintiff's Protected Status:** Plaintiff is a qualified individual with disabilities under 42 U.S.C. § 12131(2) and California law, specifically affected by central core disease and ADHD impacting manual tasks, walking, standing, lifting, bending, breathing, stamina, learning, reading, concentrating, thinking, communicating, and working.

2. **Presidential Candidacy Qualifications:** Plaintiff meets all constitutional qualifications for presidential candidacy under Article II, Section 1, Clause 5, being a natural born citizen, at least thirty-five years of age, and a resident within the United States for fourteen years.

3. **Federal Employment Status:** The presidency constitutes federal employment under 42 U.S.C. § 12111(4) (ADA definition), 3 U.S.C. § 102 (federal salary), and 29 U.S.C. § 203(e) (FLSA definition), bringing full federal employment protections to ballot access procedures.

4. **Systematic Accommodation Requests:** In 2024, Plaintiff submitted formal requests to all 50 state Secretaries of State seeking reasonable accommodations under ADA Titles I and II and Section 504, specifically requesting medical exceptions to signature collection requirements.

5. **Universal Denial Pattern:** All 50 states denied accommodations without meaningful consideration, interactive process, or individualized analysis required by federal and state disability rights laws.

1 **6. Federal Funding Context:** State election systems receive substantial federal
2 HAVA funding under 52 U.S.C. §§ 20901-21145, making them subject to federal
3 disability rights compliance requirements under Section 504.

4 **7. California Civil Code § 54.5 Violation:** Defendants failed to annually uphold
5 California Civil Code § 54.5 mandatory disability rights protections as required by
6 law, which failure contributed to and enabled the systematic discrimination.

7 **8. Established Constitutional Injury:** Systematic discrimination causes both
8 constitutional injury per se and reputational harm to Plaintiff's standing as 2016-
9 2084 US Presidential candidate requiring comprehensive remedial relief.

10 **III. TIER 1 ARGUMENTS - CORE CIVIL RIGHTS VIOLATIONS**

11 **A. ADA Title I Employment Discrimination (Primary Claim)**

12 **1. Presidential Employment Status Established**

13 The presidency constitutes federal employment under multiple statutory frameworks:

- 14 • **42 U.S.C. § 12111(4)** (ADA definition of "employee")
- 15 • **3 U.S.C. § 102** (federal salary and benefits)
- 16 • **29 U.S.C. § 203(e)** (FLSA employee definition)
- 17 • **42 U.S.C. § 2000e(f)** (Title VII employee definition)

1 The President receives federal salary, benefits, workplace safety coverage, ethics
2 requirements, and retirement system inclusion, establishing clear employment
3 relationship.

4 **1. ADA Title I Discrimination Defined**

5 **42 U.S.C. § 12112(a)** establishes the general rule: "No covered entity shall discriminate
6 against a qualified individual on the basis of disability in regard to job application
7 procedures, the hiring, advancement, or discharge of employees, employee compensation,
8 job training, and other terms, conditions, and privileges of employment."

9 **42 U.S.C. § 12112(b)** provides the codified definition of discrimination, including:

- 10 • **(b)(1)** Limiting, segregating, or classifying a job applicant or employee in a way
11 that adversely affects opportunities
- 12 • **(b)(3)** Utilizing standards, criteria, or methods of administration that have
13 discriminatory impact
- 14 • **(b)(5)(A) Not making reasonable accommodations to known physical or**
15 **mental limitations** unless accommodation would impose undue hardship
- 16 • **(b)(6)** Using qualification standards, employment tests, or other selection criteria
17 that screen out individuals with disabilities unless job-related and consistent with
18 business necessity
- 19 • **(b)(7)** Failing to select and administer employment tests in accessible manner

B. ADA Title II and Section 504 Violations (Concurrent Claims)

1. ADA Title II Discrimination Defined

42 U.S.C. § 12132 establishes the core prohibition: "No qualified individual with a disability shall, by reason of such disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity, or be subjected to discrimination by any such entity."

28 C.F.R. § 35.130 provides the comprehensive regulatory definition of discrimination, including:

- **(b)(1)(i)** Denying participation or unequal treatment
- **(b)(1)(iv)** Utilizing criteria or methods with discriminatory effect
- **(b)(2)** Imposing or applying eligibility criteria that screen out individuals with disabilities
- **(b)(7)** Failing to make reasonable modifications in policies, practices, or procedures
- **(b)(8)** Imposing differential charges for reasonable modifications

28 C.F.R. § 35.130(d) requires services in the "most integrated setting appropriate" to individuals with disabilities.

2. Federal Law Mandates Barrier Removal

Federal anti-discrimination law requires automatic barrier removal without discretionary accommodation processes:

General Non-Discrimination Mandates:

- **28 C.F.R. § 35.130(a):** "No qualified individual with a disability shall, on the basis of disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity"
- **42 U.S.C. § 12132:** "No qualified individual with a disability shall, by reason of such disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity"
- **42 U.S.C. § 2000a(a):** "All persons shall be entitled to the full and equal enjoyment of...accommodations...without discrimination or segregation"
- **42 U.S.C. § 2000d:** Prohibits exclusion from federally assisted programs

Mandatory Reasonable Modifications:

- **28 C.F.R. § 35.130(b)(7):** Public entities must make reasonable modifications in policies, practices, or procedures
- **42 U.S.C. § 12182(b)(2)(A)(ii):** Prohibits failure to make reasonable modifications in policies and procedures
- **28 C.F.R. § 35.130(b)(1)(i)-(iii), (iv)-(vii), (2):** Comprehensive modification requirements

Integration and Accessibility Requirements:

- **28 C.F.R. § 35.130(d):** Most integrated setting requirement
- **28 C.F.R. § 35.102(a):** Programs must be readily accessible and usable
- **42 U.S.C. § 12182(b)(1)(B):** Integration mandate for public accommodations

- 1 • 28 C.F.R. § 35.160(b)(1): Effective communication requirements
- 2 • 42 U.S.C. § 12182(b)(2)(A)(iii): Auxiliary aids and services mandate

3 **Prohibited Discriminatory Practices:**

- 4 • 42 U.S.C. § 12182(b)(1)(A)(i): Cannot deny opportunity to participate
- 5 • 42 U.S.C. § 12182(b)(2)(A)(i): Cannot impose screening criteria
- 6 • 28 C.F.R. § 35.130(b)(8): Cannot impose eligibility criteria that screen out
- 7 individuals with disabilities

8 **Federal Funding Anti-Discrimination:**

- 9 • 42 U.S.C. § 12133: ADA enforcement in federally funded programs
- 10 • 42 U.S.C. § 2000a-1: Discrimination prohibited in federal assistance programs
- 11 • 42 U.S.C. § 2000a-2(a): Federal funding compliance requirements
- 12 • 28 C.F.R. § 42.503: Federal funding anti-discrimination mandates
- 13 • 28 C.F.R. § 42.108: DOJ duty to induce compliance

14 **Limited Defenses:** States can only refuse barrier removal by proving **undue hardship** or
15 **fundamental alteration** through specific factual evidence - burdens defendants failed to
16 meet.

17 **3. Government Burden of Proof Failure - Regulatory Standards**

18 **28 C.F.R. Part 35, Appendix B** establishes that public entities bear the burden of
19 proving defenses and cannot rely on presumptions about disability:

1 **Anti-Presumption Mandate:** Regulations "**prohibit exclusion and segregation of**
2 **individuals with disabilities and the denial of equal opportunities enjoyed by others,**
3 **based on, among other things, presumptions, patronizing attitudes, fears, and**
4 **stereotypes about individuals with disabilities. Consistent with these standards,**
5 **public entities are required to ensure that their actions are based on facts applicable**
6 **to individuals and not on presumptions as to what a class of individuals with**
7 **disabilities can or cannot do."**

8 **Discriminatory Effect Standard:** The regulation prohibits "**criteria or methods of**
9 **administration"** that "**deny individuals with disabilities access to the public entity's**
10 **services, programs, and activities"** including "**nonessential policies and practices**
11 **that are neutral on their face, but deny individuals with disabilities an effective**
12 **opportunity to participate."**

13 **Alexander v. Choate Integration:** The Supreme Court explained that "**statements**
14 **would ring hollow if the resulting legislation could not rectify the harms resulting**
15 **from action that discriminated by effect as well as by design."** 469 U.S. at 297.

16 **High Burden Standard:** "**Congress intended the 'undue burden' standard in title II**
17 **to be significantly higher than the 'readily achievable' standard in title III."**

18 Defendants must prove by clear and convincing evidence that accommodation would
19 cause undue burden or fundamental alteration.

20 **Written Statement Requirement:** "**The decision that compliance would result in**
21 **such alteration or burdens must be made by the head of the public entity or his or**

her designee and must be accompanied by a written statement of the reasons for reaching that conclusion." Defendants provided no such analysis.

4. Continuing Accommodation Duty

Even if defendants could establish defenses (which they demonstrably cannot), the ADA requires removal of discriminatory barriers that systematically screen out individuals with disabilities, not maintenance of discriminatory practices. **Disabled in Action v. Board of Elections**, 752 F.3d 189, 198 (2d Cir. 2014).

C. California Government Code § 11135 Absolute Prohibition

1. Strongest State Law Foundation

California Government Code § 11135 provides: "No person in the State of California shall, on the basis of...disability, be unlawfully denied full and equal access to the benefits of, or be unlawfully subjected to discrimination under, any program or activity that is conducted, operated, or administered by the state."

2. Absolute Protection Standard

Unlike federal accommodation frameworks, § 11135 creates an absolute prohibition using mandatory "shall" language without burden or alteration defenses. State election candidate qualification programs are explicitly "conducted, operated, or administered by the state" and subject to this absolute protection.

1 **3. No Available Defenses**

2 Section 11135's absolute prohibition cannot be overcome by administrative convenience,
3 policy preferences, or burden claims. The statute creates stronger protection than federal
4 law through non-discretionary mandatory language.

5 **D. ADA Title III Public Accommodation Violations**

6 **1. Ballot Access as Public Accommodation**

7 State ballot access processes constitute places of public accommodation under 42 U.S.C.
8 § 12181, triggering comprehensive Title III protections.

9 **2. Specific Title III Violations**

10 **42 U.S.C. § 12182(b)(1)(A)(i):** Defendants denied Plaintiff the opportunity to participate
11 in ballot access processes.

12 **42 U.S.C. § 12182(b)(1)(B):** Defendants failed to provide ballot access in the most
13 integrated setting appropriate to Plaintiff's needs.

14 **42 U.S.C. § 12182(b)(2)(A)(i):** Defendants imposed eligibility criteria (signature
15 collection requirements) that systematically screen out individuals with disabilities
16 without necessity.

17 **42 U.S.C. § 12182(b)(2)(A)(ii):** Defendants failed to make reasonable modifications in
18 ballot access policies and procedures.

1 **42 U.S.C. § 12182(b)(2)(A)(iii):** Defendants failed to provide auxiliary aids and services
2 to ensure equal access.

3 **3. DOJ Enforcement Failure**

4 **42 U.S.C. § 12188(b)(1)(A)(i):** The Department of Justice failed to investigate alleged
5 Title III violations despite clear evidence of systematic discrimination.

6 **E. Federal Funding Compliance Violations**

7 **1. HAVA Federal Funding Requirements**

8 The Help America Vote Act (52 U.S.C. §§ 20901-21145) and National Voter Registration
9 Act (52 U.S.C. §§ 20501-20511) provide federal funding making state election systems
10 "federally assisted programs" under 42 U.S.C. § 2000d and Section 504.

11 **2. Federal Funding Prohibition Against Discrimination**

12 **42 U.S.C. § 2000d-1** explicitly prohibits federal financial assistance from supporting
13 discriminatory practices, requiring agencies to "effectuate the provisions of [§ 2000d]
14 with respect to such program or activity by issuing rules, regulations, or orders of general
15 applicability" and authorizing termination of funding for discrimination.

16 **Statutory Mandate:** Federal funds cannot be used to support, maintain, or enable
17 discriminatory practices. States accepting HAVA funding while maintaining
18 discriminatory ballot access requirements violate this fundamental prohibition.

1 **Section 504 Integration:** 29 U.S.C. § 794 incorporates this framework for disability
2 discrimination, prohibiting exclusion from federally funded programs "solely by reason
3 of her or his disability."

4 **3. Section 504 Direct Prohibition**

5 **29 U.S.C. § 794 (Section 504 of the Rehabilitation Act of 1973)** explicitly prohibits
6 discrimination on the basis of disability in any program or activity receiving federal
7 financial assistance. This is the primary anti-discrimination provision directly triggered
8 by states' acceptance of HAVA funds.

9 **4. Voting Accessibility for the Elderly and Handicapped Act**

10 **52 U.S.C. §§ 20101-20107 (VAEHA)** requires polling places for federal elections to be
11 accessible to people with disabilities. This statute complements the ADA and HAVA by
12 demonstrating a long-standing congressional mandate specifically for disability access in
13 federal elections, establishing decades-long congressional focus on this fundamental
14 right.

15 **5. Administrative Procedure Act Judicial Review**

16 **5 U.S.C. §§ 702, 704 (Administrative Procedure Act)** establishes a general right to
17 judicial review for any person "suffering legal wrong because of agency action." State
18 election officials' denial of accommodation requests constitutes final agency action
19 subject to federal court oversight for compliance with federal law.

1 **E. Crime Victim Rights Violations**

2 **1. Federal Crime Victim Status**

3 Plaintiff qualifies as a crime victim under **18 U.S.C. § 3771** and **34 U.S.C. § 20141(e)(2)**
4 due to systematic federal civil rights violations.

5 **2. California Constitutional Protections**

6 Under **California Constitution Article I, § 28(e)** (Marsy's Law), Plaintiff possesses
7 constitutional rights as a crime victim including:

- 8 • **Right to fairness and respect** for dignity (§ 28(b)(1))
- 9 • **Right to speedy proceedings** and prompt conclusion (§ 28(b)(11))
- 10 • **Right to be reasonably protected** from further harm (§ 28(b)(2))
- 11 • **Right to full restitution** as constitutional mandate (§ 28(b)(13))

12 **3. Ongoing Deprivation of Victim Rights**

13 Defendants' continued violations and delays in providing relief constitute ongoing
14 deprivation of constitutional crime victim protections requiring immediate judicial
15 intervention.

IV. TIER 2 ARGUMENTS - CONSTITUTIONAL FRAMEWORK

A. Federal Preemption and Constitutional Supremacy

1. Trump v. Anderson Federal Authority

Trump v. Anderson, No. 23-719, 601 U.S. (2024) established that:

1. States lack power to disqualify candidates for federal office

2. Not including a candidate on the ballot constitutes disqualification

This significantly strengthens federal preemption arguments by establishing exclusive congressional authority over federal candidate qualifications. Systematic denial of disability accommodations effectively adds unconstitutional qualifications for federal candidacy.

2. Article II Preemption

U.S. Term Limits, Inc. v. Thornton, 514 U.S. 779, 836 (1995) held "**a state amendment is unconstitutional when it has the likely effect of handicapping a class of candidates and has the sole purpose of creating additional qualifications indirectly.**" Systematic denial of disability accommodations effectively handicaps disabled candidates and creates indirect additional qualifications.

2. Federal Preemption Authority - Congressional Qualifications Exclusive

Powell v. McCormack, 395 U.S. 486, 550 (1969) established: "**in judging the qualifications of its members Congress is limited to the standing qualifications**

1 **prescribed in the Constitution."** States cannot impose additional qualifications beyond
2 constitutional requirements.

3 **Supporting Federal Preemption Authority:**

- 4 • **Exon v. Tiemann**, 279 F. Supp. 609, 613 (D. Neb. 1968): "**There being no such**
5 **requirement in the Constitution itself, a state cannot require that a**
6 **Representative live in the District from which he was nominated."**
- 7 • **State ex rel. Chavez v. Evans**, 446 P.2d 445, 448 (N.M. 1968): "[**The state**
8 **statute,] by requiring additional qualifications... adds additional**
9 **qualifications to becoming a candidate for that office.... [W]e must hold the**
10 **provisions of the Federal Constitution prevail and that this statute**
11 **unconstitutionally adds additional qualifications."**
- 12 • **Cook v. Gralike**, 531 U.S. 510 (2001): State powers over federal elections relate
13 "**only to the power over the procedural mechanisms of elections**" - attempts to
14 influence election outcomes exceed state authority.

15 **Equal Protection Application:** Like public roads funded by the public purse, ballot
16 access processes funded by federal HAVA grants cannot exclude qualified citizens
17 without due process. Systematic exclusion of individuals with disabilities from federally
18 funded election processes violates Fourteenth Amendment equal protection guarantees.

19 **Burdick v. Takushi**, 504 U.S. 428, 446 (1992) documented: "**until the late 1800's, all**
20 **ballots cast in this country were write-in ballots. The system of state-prepared**
21 **ballots, also known as the Australian ballot system, was introduced in this country**

1 **in 1888...Prior to this, voters prepared their own ballots or used preprinted tickets**
2 **offered by political parties. Since there were no state-imposed restrictions on whose**
3 **name could appear on a ballot, individuals could always vote for the candidates of**
4 **their choice."**

5 This historical precedent demonstrates that restrictive ballot access requirements are not
6 constitutionally mandated but represent relatively recent state impositions that must yield
7 to federal constitutional protections.

8 **B. Privileges or Immunities Clause - Federal Election Participation**

9 Federal election participation represents a fundamental privilege of national citizenship
10 under the Fourteenth Amendment requiring strict scrutiny. **McDonald v. Chicago**, 561
11 U.S. 742, 813 (2010) (Thomas, J., concurring) recognized P&I clause protection for
12 fundamental rights.

13 **Saenz v. Roe**, 526 U.S. 489, 502-03 (1999): "**The right of the newly arrived citizen to**
14 **the same privileges and immunities enjoyed by other citizens of the same State"**
15 includes "**the right to be treated like other citizens of that State.**" Federal election
16 participation constitutes a core privilege of national citizenship that states cannot abridge
17 through discriminatory ballot access requirements.

18 **Crandall v. Nevada**, 73 U.S. 35, 48 (1868): "**the citizen cannot be restricted in his**
19 **right to pass from State to State"** - by analogy, citizens cannot be restricted in
20 exercising federal electoral privileges through discriminatory state barriers.

1 **Strict Scrutiny Application: Memorial Hospital v. Maricopa County**, 415 U.S. 250,
2 263 (1974) applied strict scrutiny to state restrictions affecting fundamental rights of
3 national citizenship. Systematic exclusion of disabled candidates from federal election
4 participation violates core P&I protections requiring compelling state interest and narrow
5 tailoring - standards defendants cannot meet.

6 **C. Strict Scrutiny Analysis - Multiple Fundamental Rights Convergence**

7 When government action burdens multiple fundamental rights simultaneously, strict
8 scrutiny analysis becomes mandatory and virtually insurmountable for defendants.

9 **First Amendment - Political Association: Anderson v. Celebrezze**, 460 U.S. 780, 787-
10 88 (1983) established that ballot access restrictions implicate "**the right of individuals to**
11 **associate for the advancement of political beliefs**" requiring "**exacting scrutiny.**"

12 Systematic disability discrimination in ballot access directly burdens political association
13 rights.

14 **Fourteenth Amendment - Equal Protection: City of Cleburne v. Cleburne Living**
15 **Ctr.**, 473 U.S. 432, 446 (1985) applied heightened scrutiny to disability discrimination
16 affecting fundamental rights. **Dunn v. Blumstein**, 405 U.S. 330, 337 (1972): "**if a**
17 **challenged statute grants the right to vote to some bona fide residents of requisite**
18 **age and citizenship and denies the franchise to others, the Court must determine**
19 **whether the exclusions are necessary to promote a compelling state interest.**"

20 **Due Process - Fundamental Liberty: Washington v. Glucksberg**, 521 U.S. 702, 720-
21 21 (1997) protects "**fundamental rights and liberties which are, objectively, 'deeply**

1 **rooted in this Nation's history and tradition.'**" Federal election participation meets this
2 standard.

3 **Privileges & Immunities - Federal Citizenship: Saenz v. Roe**, 526 U.S. 489, 502-03
4 (1999) requires strict protection of federal citizenship privileges, including electoral
5 participation rights.

6 **Strict Scrutiny Standard: Loving v. Virginia**, 388 U.S. 1, 11 (1967): Classifications
7 affecting fundamental rights "**must be justified by a compelling governmental interest**
8 **and must be narrowly drawn to express only the essential governmental interests."**
9 Defendants failed to provide any compelling interest analysis or narrow tailoring
10 evidence.

11 **Burden Impossibility:** When multiple fundamental constitutional rights converge -
12 political association, equal protection, due process, and privileges & immunities - the
13 government burden becomes practically insurmountable. **Sherbert v. Verner**, 374 U.S.
14 398, 403 (1963).

15 **D. International Law Precedents**

16 **1. European Court of Human Rights**

17 **Kiss v. Hungary**, No. 38832/06 (2010) established that restrictions on disabled
18 individuals' political participation violate fundamental human rights.

1 **2. Inter-American Court of Human Rights**

2 **Artavia Murillo v. Costa Rica** (2012) requires states to ensure disabled persons' full
3 political participation.

4 **4. Constitutional Supremacy and Official Accountability**

5 **Ex parte Milligan**, 71 U.S. (4 Wall.) 2, 120-21 (1866): "The Constitution is a law for
6 rulers and people, equally in war and in peace, and covers with the shield of its protection
7 all classes of men, at all times, and under all circumstances." Systematic constitutional
8 violations threaten democratic governance itself.

9 **United States v. Nixon**, 418 U.S. 683, 708 (1974): "No [one] is above the law" -
10 government officials violating constitutional rights face accountability regardless of
11 position.

12 **Marbury v. Madison**, 5 U.S. 137, 176 (1803): "The very essence of civil liberty
13 certainly consists in the right of every individual to claim the protection of the laws" -
14 foundational principle requiring constitutional protection for all citizens.

15 The systematic discrimination violates multiple provisions of the **1990 Copenhagen**
16 **Commitment**, including:

- 17 • **Section 5.1:** Equal suffrage rights and fair electoral processes
- 18 • **Section 5.3:** Free and fair elections with equal opportunity
- 19 • **Section 5.4:** Rights of all citizens to participate in democratic governance
- 20 • **Section 6:** Non-discrimination in political participation

- 1 • **Section 7.1:** Human rights and fundamental freedoms
- 2 • **Section 7.3:** Equal protection under the law
- 3 • **Section 7.5:** Effective remedies for rights violations
- 4 • **Section 7.6:** Non-discrimination in law and practice
- 5 • **Section 7.7:** Equal treatment by public authorities
- 6 • **Section 7.8:** Right to effective remedy for human rights violations

7 These international obligations reinforce federal constitutional protections and
8 demonstrate global consensus on disability rights in democratic participation.

9 **V. TIER 3 ARGUMENTS - ENHANCED ENFORCEMENT FRAMEWORK**

10 **A. Election Invalidation Under Fruit of Poisonous Tree Doctrine**

11 **1. Legal Foundation**

12 **Wong Sun v. United States**, 371 U.S. 471, 484 (1963) established that evidence derived
13 from constitutional violations must be excluded as tainted. **Silverthorne Lumber Co. v.**
14 **United States**, 251 U.S. 385, 392 (1920) originated the principle preventing government
15 benefit from unlawful conduct.

16 **2. Federal Court Authority for Election Invalidation**

17 Courts have applied this doctrine to election results tainted by constitutional violations:

- 18 • **Harvell v. Blytheville School District**, 71 F.3d 1382, 1389-90 (8th Cir. 1995)
19 (invalidating discriminatory election practices)

- **Bell v. Southwell**, 376 F.2d 659, 664 (5th Cir. 1967) (voiding election results due to discrimination)
- **Griffin v. Burns**, 570 F.2d 1065, 1078-79 (1st Cir. 1978) (establishing federal authority to void discriminatory elections)

3. Application to 2024 Election

The 2024 election was conducted under systematic discriminatory requirements that constitutionally excluded qualified candidates with disabilities. **United States v. Cruz**, 154 F.3d 1145, 1152 (10th Cir. 1998) explained the doctrine "**serves to deter unlawful government conduct by denying the government 'the use of any direct or indirect benefits of the illegality.'**"

Constitutional Remedy Framework: Plaintiff meets all constitutional requirements for President under Article II, Section 1, Clause 5. The sole barrier is state-imposed ballot access requirements that systematically discriminate against individuals with disabilities. In any court-ordered remedial election, constitutional qualifications alone must determine eligibility, with automatic qualification processing without discriminatory barriers for candidates meeting constitutional requirements. This prevents defendants from imposing new barriers or delays that would again exclude qualified candidates.

4. Democratic Legitimacy Precedents

The resulting governmental authority derived from constitutionally tainted processes lacks democratic legitimacy requiring invalidation:

1 **Gray v. Sanders**, 372 U.S. 368, 380 (1963): "Every citizen's vote [must] be counted
2 equally with those of all other citizens." When citizens are unlawfully excluded, resulting
3 government lacks democratic legitimacy.

4 **Reynolds v. Sims**, 377 U.S. 533, 555 (1964): "The right to vote freely for the candidate
5 of one's choice is of the essence of a democratic society, and any restrictions on that right
6 strike at the heart of representative government."

7 **Baker v. Carr**, 369 U.S. 186, 226 (1962): Courts must intervene when electoral
8 processes become "fundamentally unfair" - establishes justiciability of electoral integrity
9 challenges.

10 **United States v. Classic**, 313 U.S. 299, 315 (1941): "The right of qualified voters to vote
11 and have their votes counted" is constitutionally secured - violations invalidate electoral
12 legitimacy.

13 **Nixon v. Herndon**, 273 U.S. 536, 541 (1927) and **Smith v. Allwright**, 321 U.S. 649, 664
14 (1944): Invalidated discriminatory election practices affecting democratic participation.

15 **Ex parte Yarbrough**, 110 U.S. 651, 665 (1884): Federal authority to protect electoral
16 integrity against state interference with constitutional rights.

17 **Reynolds v. Sims**, 377 U.S. 533, 555 (1964): "**The right to vote freely for the**
18 **candidate of one's choice is of the essence of a democratic society, and any**
19 **restrictions on that right strike at the heart of representative government. [...]**

20 **Undoubtedly, the right of suffrage is a fundamental matter in a free and democratic**
21 **society. Especially since the right to exercise the franchise in a free and unimpaired**

1 manner is preservative of other basic civil and political rights, any alleged
2 infringement of the right of citizens to vote must be carefully and meticulously
3 scrutinized."

4 **National Federation of the Blind v. Lamone**, 813 F.3d 494, 507 (4th Cir. 2016):
5 "Voting is a quintessential public activity. In enacting the ADA, Congress explicitly
6 found that 'individuals with disabilities ... have been ... relegated to a position of
7 political powerlessness in our society, based on characteristics that are beyond the
8 control of such individuals.' **Tennessee v. Lane**, 541 U.S. 509, 516 (2004). Ensuring
9 that disabled individuals are afforded an opportunity to participate in voting that is
10 equal to that afforded others, 28 C.F.R. § 35.130, helps ensure that those individuals
11 are never relegated to a position of political powerlessness."

12 **B. Mandatory Criminal Prosecution Under 42 U.S.C. § 1987**

13 **1. Non-Discretionary Enforcement Duty**

14 **42 U.S.C. § 1987** provides: "It **shall** be the duty of all marshals and deputy marshals to
15 obey and execute all warrants...and it **shall** be the duty of the district attorney...to institute
16 **prosecutions against all persons violating** any of the provisions of [civil rights
17 statutes]."

18 **United States v. Hayes**, 589 F.2d 811, 816 (5th Cir. 1979) recognized § 1987 creates a
19 **mandatory duty to pursue civil rights violations**. The use of "shall" creates non-
20 discretionary enforcement obligation.

2. Enhanced Criminal Liability Standards

18 U.S.C. § 241-242 violations are clearly established:

- **Screws v. United States**, 325 U.S. 91, 107 (1945) (willful deprivation under color of law)
- **United States v. Price**, 383 U.S. 787, 806 (1966) (government violations constitute "**more severe counterpart**" than private acts)

Ultra vires acts demonstrate willful violation of clearly established constitutional law requiring criminal referral.

C. Federal Hate Crime Violations

18 U.S.C. § 245(b)(1)(A), (B), (E) specifically prohibits interfering with ability to "qualify and campaign as a candidate" for federal office, participating in benefits/services/programs "provided or administered by the United States," and participating in "programs receiving Federal financial assistance." Federal elections involve all three categories through HAVA funding and federal election administration.

B. Criminal Conspiracy Violations

1. Interstate Conspiracy Against Rights

United States v. Guest, 383 U.S. 745, 760 (1966) applies to conspiracies to violate constitutional rights. The coordinated action across all 50 states using similar rationales to deny accommodations establishes interstate conspiracy under 18 U.S.C. § 241.

2. Willful Deprivation Standard

Screws v. United States, 325 U.S. 91, 107 (1945) established willful deprivation of constitutional rights. Systematic accommodation denials across all jurisdictions demonstrate willfulness and knowledge of clearly established law violations.

4. Comprehensive Discrimination Definitions

Federal Civil Rights Framework: Multiple federal statutes define discrimination with overlapping protections:

- **42 U.S.C. § 2000a(a):** "All persons shall be entitled to the full and equal enjoyment of...accommodations...without discrimination or segregation"
- **42 U.S.C. § 2000d:** Prohibits exclusion from federally assisted programs based on protected status
- **42 U.S.C. § 12132:** "No qualified individual with a disability shall, by reason of such disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity"
- **28 C.F.R. § 35.130(a):** "No qualified individual with a disability shall, on the basis of disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity"

5. Federal Funding Discrimination Prohibitions

Federal financial assistance cannot support discriminatory practices:

- 1 • **42 U.S.C. § 12133:** Enforcement provision requiring federal agencies to ensure
- 2 compliance
- 3 • **42 U.S.C. § 2000a-1:** Prohibits discrimination in federally assisted programs
- 4 • **28 C.F.R. § 42.503:** Federal funding requirements for anti-discrimination
- 5 compliance
- 6 • **28 C.F.R. § 42.108(a):** DOJ failure to induce compliance with federal
- 7 requirements

8 **6. Inclusive Operations Mandate**

9 Government entities must operate inclusively:

- 10 • **29 C.F.R. § 1630.2(j)(iii):** Inclusion requirement for major life activities
- 11 • **28 C.F.R. § 35.130(b)(7):** Reasonable modifications in policies and procedures
- 12 • **28 C.F.R. § 35.130(d):** Most integrated setting requirement
- 13 • **42 U.S.C. § 12182(b)(1)(B):** Integration mandate for public accommodations

14 **7. Auxiliary Aids and Services Requirement**

- 15 • **28 C.F.R. § 35.160(b)(1):** Public entities must provide auxiliary aids for effective
- 16 communication
- 17 • **42 U.S.C. § 12182(b)(2)(A)(iii):** Failure to provide auxiliary aids constitutes
- 18 discrimination

1 **10. Shelley v. Kraemer State Action Doctrine**

2 **Shelley v. Kraemer**, 334 U.S. 1, 18 (1948) established that judicial enforcement of a
3 discriminatory act constitutes state action under the Fourteenth Amendment. By analogy,
4 state officials' enforcement of discriminatory election laws constitutes undeniable state
5 action subject to federal oversight and constitutional requirements.

6 **42 U.S.C. § 2000a(d)** defines when discrimination is supported by state action:

7 **"Discrimination or segregation by an establishment is supported by State action**
8 **within the meaning of this subchapter if such discrimination or segregation (1) is**
9 **carried on under color of any law, statute, ordinance, or regulation; or (2) is carried**
10 **on under color of any custom or usage required or enforced by officials of the State**
11 **or political subdivision thereof; or (3) is required by action of the State or political**
12 **subdivision thereof."**

13 Defendants' ballot access discrimination satisfies all three categories: (1) carried on under
14 color of state election statutes, (2) enforced by state election officials, and (3) required by
15 state election procedures. This establishes comprehensive state action supporting
16 systematic disability discrimination. Systematic denial of disability accommodations for
17 federal candidacy constitutes federal hate crimes with enhanced penalties.

18 **18 U.S.C. § 249** provides additional disability-based hate crime protections with federal
19 jurisdiction.

1 **D. RICO Enterprise Liability and Continuing Violations**

2 The coordinated pattern of constitutional violations across multiple states utilizing federal
3 funding constitutes "racketeering activity" under 18 U.S.C. § 1961(1).

4 **Boyle v. United States**, 556 U.S. 938, 946 (2009) defined enterprise elements: ongoing
5 organization, common purpose, relationships among associates, and longevity. The
6 federally funded election system meets all requirements.

7 **Continuing Violations Doctrine:** Each election conducted under discriminatory ballot
8 access requirements constitutes a new RICO predicate act. **Klehr v. A.O. Smith Corp.**,
9 521 U.S. 179, 189 (1997) established that "**each overt act that is part of the violation**
10 **and that injures the plaintiff...starts the statute of limitations running again,**
11 **regardless of the plaintiff's knowledge of the alleged illegality at much earlier**
12 **times.**"

13 **Pattern Extension:** The discriminatory requirements affect all forms of democratic
14 participation requiring similar signature collection, including ballot initiatives and
15 candidate qualification across multiple election cycles. **H.J. Inc. v. Northwestern Bell**
16 **Telephone Co.**, 492 U.S. 229, 239 (1989) confirmed that RICO patterns include
17 "**continuity plus relationship**" - ongoing constitutional violations through systematic
18 discriminatory practices satisfy both requirements.

19 **Indefinite Statutory Extension:** Until constitutional adjudication eliminates
20 discriminatory barriers, each subsequent election constitutes new predicate activity,

1 extending statute of limitations indefinitely under continuing violations doctrine.
2 **National Railroad Passenger Corp. v. Morgan**, 536 U.S. 101, 118 (2002).
3 RICO provides treble damages (§ 1964(c)) and asset forfeiture (§ 1963) for systematic
4 civil rights violations.

5 **VI. SOVEREIGN IMMUNITY DESTRUCTION**

6 **A. Complete ADA Abrogation**

7 **42 U.S.C. § 12202** explicitly provides: "**A State shall not be immune under the**
8 **eleventh amendment to the Constitution of the United States from an action in**
9 **Federal or State court**" for ADA violations.

10 **Tennessee v. Lane**, 541 U.S. 509, 533-34 (2004) held Congress validly abrogated state
11 sovereign immunity under **ADA Title II for fundamental rights violations**,
12 documenting states' "extensive history of violating constitutional rights of persons with
13 disabilities."

14 **B. Ex Parte Young Ultra Vires Exception - Continuing Defense Violations**

15 **Ex parte Young**, 209 U.S. 123, 159-60 (1908) established: "**The act to be enforced is**
16 **alleged to be unconstitutional, and if it be so, the use of the name of the State to**
17 **enforce an unconstitutional act to the injury of complainants is a proceeding without**
18 **the authority of and one which does not affect the State in its sovereign or**
19 **governmental capacity.**"

1 **Cooper v. Aaron**, 358 U.S. 1, 18 (1958): "No state legislator or executive or judicial
2 officer can war against the Constitution without violating his undertaking to
3 support it."

4 State officials continuing to defend constitutionally prohibited ultra vires acts violate their
5 constitutional oaths and lose immunity protection.

6 **1. Federal Duty to Protect Constitutional Rights**

7 **United States v. California** (1947) established federal duty to protect constitutional
8 rights against state encroachment. Federal interests "**held in trust for all people, cannot**
9 **be undermined by state actions.**"

10 **2. Voting Rights Independence Principle**

11 **National Federation of the Blind v. Lamone**, 813 F.3d 494, 506-7 (4th Cir. 2016):
12 "The right to vote should not be contingent on the happenstance that others are
13 available to help... the purpose of the Rehabilitation Act is 'to empower individuals
14 with disabilities to maximize employment, economic self-sufficiency, independence,
15 and inclusion and integration into society.'"

16 This principle applies to ballot access - the right to run for office cannot depend on
17 physical abilities that can be reasonably accommodated.

VII. ANTICIPATED DEFENSES AND DEFINITIVE REBUTTALS

A. Elections Clause Defense - Quinones Doctrine Destruction

Defendants' Argument: States possess plenary power over election procedures under Article I, Section 4.

Rebuttal: The Quinones doctrine establishes that **discriminatory state law is not a defense to federal civil rights liability - it becomes a source of federal liability.**

Quinones v. City of Evanston, 58 F.3d 275, 277 (7th Cir. 1995): "**A discriminatory state law is not a defense to liability under federal law; it is a source of liability under federal law.**" **Williams v. General Foods Corp.**, 492 F.2d 399, 404 (7th Cir. 1974).

State election procedures that systematically discriminate against individuals with disabilities constitute evidence of federal violations, not defenses to federal authority. The more discriminatory the state law, the stronger the federal case becomes.

B. Administrative Burden Claims

Defendants' Argument: Accommodation requests create undue administrative burden.

Rebuttal: Defendants failed to provide required specific factual analysis proving undue burden by clear and convincing evidence. **Frontiero v. Richardson**, 411 U.S. 677, 690 (1973) held "administrative convenience" cannot justify infringing fundamental rights. States routinely accommodate various ballot access scenarios without claiming burden.

1 **C. Election Integrity Concerns**

2 **Defendants' Argument:** Signature requirements serve compelling election integrity
3 interests.

4 **Rebuttal: PGA Tour, Inc. v. Martin**, 532 U.S. 661, 682-83 (2001) established that
5 reasonable accommodations remove discriminatory barriers while preserving essential
6 functions. The constitutional qualifications for presidential candidacy remain unchanged -
7 the ADA requires elimination of discriminatory signature collection barriers that
8 systematically screen out individuals with disabilities, preserving constitutional
9 qualification verification while removing discriminatory procedural requirements.

10 **VIII. COURT ACCESS AND PROCEDURAL REQUIREMENTS**

11 **A. ADA Court Access Mandates**

12 **Galloway v. Superior Court of District of Columbia**, 816 F. Supp. 12, 19 (D.D.C.
13 1993) specifically held that **failing to provide individuals with disabilities information**
14 **necessary to access court proceedings constitutes discrimination** under the ADA,
15 emphasizing "**the courthouse door cannot be closed to any individual.**"

16 This Court must ensure full accessibility of all proceedings and provide necessary
17 accommodations for Plaintiff's meaningful participation.

1 **B. Court-Assisted Service Authority**

2 **28 U.S.C. § 1915(d)** provides: "The officers of the court shall issue and serve all process,
3 and perform all duties in such cases." Courts have special obligations to assist pro se
4 litigants. **Haines v. Kerner**, 404 U.S. 519, 520-21 (1972); **Johnson v. Reagan**, 524 F.2d
5 1123, 1124 (9th Cir. 1975).

6 **IX. ENHANCED DAMAGES FRAMEWORK**

7 **A. Minimum Statutory Exposure Per Violation**

8 **Federal Statutory Minimums:**

- 9 • **ADA Title I:** \$16,000 civil penalty + compensatory damages
- 10 • **ADA Title II:** \$25,000 civil penalty + attorney's fees
- 11 • **Section 504:** Full program funding disgorgement
- 12 • **Civil Rights (42 U.S.C. § 1983):** Compensatory + punitive damages
- 13 • **Hate Crimes (18 U.S.C. § 245):** \$10,000+ per violation + criminal penalties

14 **California Statutory Minimums:**

- 15 • **Unruh Civil Rights Act (Civil Code § 52):** \$4,000 minimum per violation plus
16 treble actual damages and attorney's fees
- 17 • **Disabled Persons Act (Civil Code § 54.3):** \$1,000 minimum per violation plus
18 actual damages
- 19 • **Government Code § 11135:** Complete program funding forfeiture for absolute
20 discrimination prohibition violations

1 • **Civil Code § 54.5:** Automatic damages plus attorney's fees for annual compliance
2 failures

3 **RICO Enhancement:** Treble damages under 18 U.S.C. § 1964(c)

4 **Total minimum exposure:** \$47,000+ per violation before additional damages, with
5 systematic violations across multiple defendants creating potential liability exceeding
6 tens of millions.

7 **B. Asset Forfeiture and Disgorgement**

8 **Federal Disgorgement:** Complete forfeiture of HAVA funding received while violating
9 federal civil rights laws under unjust enrichment principles.

10 **California Restitution:** Business & Professions Code § 17203 and Government Code §
11 16305 require disgorgement of public funds "unlawfully expended" on discriminatory
12 practices.

13 **X. SETTLEMENT FRAMEWORK AND PREFERRED RESOLUTION**

14 **A. Comprehensive Accommodation Package**

15 1. **Mandatory Barrier Removal:** Automatic elimination of discriminatory signature
16 requirements for qualified candidates with disabilities under 28 C.F.R. §
17 35.130(a), (b)(7) and 42 U.S.C. § 12182(b)(2)(A)(ii)

- 1 2. **Federal Preemption Authority:** Recognition that states cannot impose additional
2 qualifications beyond constitutional requirements per **Powell v. McCormack**, 395
3 U.S. 486, 550 (1969) and **Cook v. Gralike**, 531 U.S. 510 (2001)
- 4 3. **Non-Discretionary Accommodation:** Recognition of ADA Title I protections and
5 automatic barrier removal under 28 C.F.R. § 35.130(a) and 42 U.S.C. § 12132
- 6 4. **Federal Employment Accommodation:** Recognition of ADA Title I protections
7 for presidential candidacy under federal preemption authority
- 8 5. **Civil Rights Compensation:** Reasonable monetary compensation including
9 minimum statutory civil rights damages, reputational harm compensation,
10 California Civil Code § 54.5 violation compensation, attorney's fees, and
11 administrative expenses
- 12 6. **Compliance Training:** ADA, Section 504, and § 11135 education for all election
13 officials
- 14 7. **Monitoring Agreement:** Oversight mechanism for future accommodation
15 requests

16 **B. Accountability and Restitution Measures**

- 17 **Symbolic Federal Funding Return:** Partial disgorgement of HAVA grants showing
18 acknowledgment of improper benefit retention.
- 19 **Compliance Program Funding:** Defendants bear costs of training, procedure
20 development, and system improvements.

1 **Ongoing Monitoring Expenses:** Defendants cover oversight, verification, and future
2 accommodation processes.

3 **Annual § 54.5 Compliance:** Mandatory annual upholding with certification, remedial
4 measures, automatic compensation for violations, and public reporting.

5 **C. Public Acknowledgment Relief**

6 As detailed in the attached **Comprehensive Public Acknowledgment Campaign Plan**,
7 California officials shall execute a multi-platform acknowledgment of systematic
8 constitutional violations and their impact on Plaintiff's presidential candidacy. This
9 remedial relief addresses reputational harm and establishes accountability for government
10 wrongdoing.

11 **D. Consequences of Non-Settlement**

12 **Litigation Path Risks:**

- 13 • **Comprehensive liability:** Tens of millions in damages, treble awards, complete
14 asset forfeiture
- 15 • **Criminal exposure:** Federal hate crime and civil rights prosecutions with
16 enhanced penalties
- 17 • **Election invalidation:** Court-ordered new presidential election under fruit of
18 poisonous tree doctrine
- 19 • **Precedential impact:** Adverse findings affecting nationwide election accessibility
20 with maximum penalties

- **Loss of narrative control:** Court-ordered acknowledgment potentially more extensive and damaging than voluntary settlement

I. MOOTNESS PREVENTION - CONTINUING CONSTITUTIONAL VIOLATIONS

While the 2024 election cycle has passed, this case is not moot under the "**capable of repetition, yet evading review**" doctrine. **Moore v. Ogilvie**, 394 U.S. 814, 816 (1969) established this critical precedent in election law, allowing courts to rule on ballot access cases even after elections have passed.

Expanding Pattern of Constitutional Violations

The systematic discriminatory barriers extend beyond presidential candidacy to all forms of democratic participation requiring similar signature collection criteria, including:

1. **Ballot initiatives and referenda** using identical discriminatory signature requirements
2. **State and local candidate qualifications** employing the same exclusionary practices
3. **Future federal elections** perpetuating systematic disability discrimination

Continuing RICO Violations: Each election cycle conducted under these discriminatory requirements constitutes new predicate activity under **Klehr v. A.O. Smith Corp.**, 521 U.S. 179, 189 (1997), indefinitely extending statute of limitations and multiplying constitutional injury.

1 **Judicial Duty and Economic Imperative**

2 **Powell v. McCormack**, 395 U.S. 486, 549 (1969): "**Our system of government**
3 **requires that federal courts on occasion interpret the Constitution in a manner at**
4 **variance with the construction given the document by another branch.**"

5 Constitutional violations require prompt judicial resolution.

6 **Economic Reality:** Each election cycle conducted under discriminatory requirements
7 exponentially increases:

- 8 • **Statutory damages:** \$47,000+ per violation multiplied across election cycles
- 9 • **RICO treble damages:** Continuing violations across multiple jurisdictions
- 10 • **Asset forfeiture liability:** Complete disgorgement of federal funding
- 11 • **Criminal exposure:** Enhanced penalties for willful civil rights violations

12 **Luther v. Borden**, 48 U.S. 1, 47 (1849) established that some constitutional questions
13 "**belong to the courts to decide**" and cannot be avoided. Delay in constitutional
14 adjudication violates judicial duty under 28 U.S.C. § 453 and multiplies taxpayer liability
15 through continuing violations.

16 This doctrine prevents defendants from escaping accountability through the cyclical
17 nature of elections and ensures that recurring constitutional violations receive definitive
18 judicial resolution to prevent indefinite recurrence and escalating constitutional injury.

19 The undisputed facts establish clear violations of federal and state disability rights laws
20 through systematic denial of reasonable accommodations without required analysis or

1 interactive process. These violations constitute both immediate constitutional injury and
2 ongoing reputational harm requiring comprehensive remedial relief.

3 Under the principle that "justice must satisfy the appearance of justice," **In re**
4 **Murchison**, 349 U.S. 133, 136 (1955), this Court should grant relief ensuring
5 constitutional compliance and protecting fundamental rights of disabled citizens to
6 participate equally in federal elections.

7 **WHEREFORE**, Plaintiff respectfully requests this Court:

8 **IMMEDIATE ACCOMMODATION RELIEF:**

- 9 1. **GRANT PARTIAL SUMMARY JUDGMENT** on ADA Title I, ADA Title II,
10 Section 504, and California Government Code § 11135 violations;
- 11 2. **ORDER** elimination of discriminatory ballot access barriers and implementation
12 of medical exceptions for qualified individuals with disabilities;
- 13 3. **MANDATE** automatic barrier removal under federal anti-discrimination law - 28
14 C.F.R. § 35.130(a), (b)(7) and 42 U.S.C. § 12182(b)(2)(A)(ii);
- 15 4. **MANDATE** automatic barrier removal and reasonable accommodations as
16 required by federal preemption - states must include rather than exclude under
17 non-discretionary federal civil rights obligations;
- 18 5. **RECOGNIZE** comprehensive federal disability rights protections including ADA
19 Title I employment protections, ADA Title II public entity obligations, Section
20 504 federally funded program requirements, and all other applicable anti-
21 discrimination laws for presidential candidacy;

1 **CONSTITUTIONAL ENFORCEMENT:**

2 6. **DECLARE** federal election participation constitutes fundamental privilege of
3 national citizenship under Privileges & Immunities Clause requiring strict
4 scrutiny;

5 7. **APPLY** strict scrutiny analysis to systematic disability discrimination affecting
6 multiple fundamental rights - political association, equal protection, due process,
7 and federal citizenship privileges;

8 8. **FIND** systematic disability discrimination violates multiple constitutional
9 protections under exacting scrutiny standard;

10 9. **HOLD** defendants failed to demonstrate compelling state interest or narrow
11 tailoring as required under strict scrutiny;

12 10.**INVOKE** federal preemption under Trump v. Anderson precedent;

13 **COMPENSATION AND RESTITUTION:**

14 10.**AWARD** reasonable compensation package including minimum statutory civil
15 rights damages, reputational harm compensation, California Civil Code § 54.5
16 violation compensation, attorney's fees, and administrative expenses;

17 11.**ORDER** partial restitution including symbolic federal funding return, compliance
18 program funding, and monitoring expenses;

COMPLIANCE REQUIREMENTS:

- 12.**MANDATE** annual compliance with California Civil Code § 54.5 including certification, remedial measures, automatic compensation, and public reporting;
- 13.**REQUIRE** comprehensive ADA, Section 504, and federal civil rights training for all government officials, administrators, and personnel including but not limited to California Secretary of State, California Treasurer, California Attorney General and Attorney General's Office staff to ensure proper performance of governmental duties and prevent discrimination against qualified individuals with disabilities in all programs, services, and activities;
- 14.**ESTABLISH** monitoring mechanism for future accommodation requests;
- 15.**ORDER** implementation of public acknowledgment relief as detailed in attached Comprehensive Public Acknowledgment Campaign Plan;

ENHANCED ENFORCEMENT (if settlement unsuccessful):

- 16.**DECLARE** 2024 election void ab initio under fruit of poisonous tree doctrine;
- 17.**ORDER** new presidential election with constitutional qualifications alone determining eligibility;
- 18.**MANDATE** automatic qualification processing without discriminatory barriers for candidates meeting constitutional requirements;
- 19.**PROHIBIT** imposing ballot access requirements beyond constitutional qualifications under federal preemption authority;
- 20.**AWARD** comprehensive damages including treble awards and asset forfeiture;

- 1 21.**REFER** federal hate crime and civil rights violations for criminal prosecution;
2 22.**IMPOSE** joint and several liability for systematic constitutional violations;

3 **CASE MANAGEMENT:**

- 4 21.**RETAIN** jurisdiction for ongoing compliance oversight;
5 22.**EXPEDITE** resolution given continuing constitutional violations;
6 23.**GRANT** such other relief as justice requires.

7 Equal participation in federal elections represents a fundamental principle of
8 constitutional democracy that must be protected for all citizens, including those with
9 disabilities.

10 **Respectfully submitted,**

11

12

13  **Mathew Tyler**
14 550 Vallombrosa Ave # 6471
15 Chico, CA 95927
16 +1-262-757-8802
17 Psalm_88-18@FAKEGOV.COM
18 **Plaintiff, *Pro per pro se***

19

1

VERIFICATION

2 I, Mathew Tyler, declare under penalty of perjury under the laws of the United States that

3 the foregoing is true and correct to the best of my knowledge and belief.

4 Executed on 09/02/2025, at Butte County, California.

5

6

7 **MATHEW TYLER**

8 Plaintiff, Pro per pro se

9

CERTIFICATE OF SERVICE

10 Plaintiff requests the Court serve this motion upon all Defendants pursuant to 28 U.S.C. §

11 1915(d) and Federal Rule of Civil Procedure 4, as Plaintiff lacks financial resources for

12 service upon multiple defendants across jurisdictions.

13 **MATHEW TYLER**

14 Plaintiff, Pro per pro se

15

1 **COMPREHENSIVE PUBLIC ACKNOWLEDGMENT CAMPAIGN PLAN**

2 **Case:** Tyler v. 118th US Congress, et al.

3 **Case No.:** 2:2025CV00404

4 **Court:** United States District Court, Eastern District of California

5 **1.0 CONTENT OF THE ACKNOWLEDGMENT**

6 **Official Statement for Public Release**

7 "The State of California formally and publicly acknowledges that officials acting on its behalf
8 systematically interfered with the rights of Mathew 'Matt Tyler' Tyler. These actions constituted direct
9 and material interference in the 2024 U.S. Presidential election.

10 This interference directly infringed upon Mr. Tyler's rights as guaranteed by the U.S. Constitution,
11 federal civil rights statutes, and California state law. Specifically, we acknowledge that our actions
12 unjustly impeded his federally protected activities and critically undermined his viability as a
13 presidential candidate.

14 These actions contributed to a compromised electoral environment and a result that Mr. Tyler has
15 demonstrated, with irrefutable evidence, was fraudulently certified. This crisis of democratic legitimacy
16 was compounded when the 118th U.S. Congress disregarded his numerous notifications and evidence
17 of national interference.

1 While the State of California is not responsible for the subsequent inaction of Congress, we accept full
2 responsibility for our role in creating the conditions that led to this injustice. Our actions caused
3 significant dignitary harm and injury to Mr. Tyler's national reputation.

4 This public acknowledgment serves as a necessary remedy to repair the damage inflicted upon Mr.
5 Tyler's reputation and political viability. Furthermore, it serves as a solemn vow to the nation that such
6 violations will be rectified and to establish a deterrent against any such actions occurring again, in any
7 jurisdiction. We are taking immediate and comprehensive steps to ensure the integrity of our electoral
8 process and the protection of every candidate's rights."

9 **2.0 DISSEMINATION STRATEGY**

10 A multi-platform, national campaign is required to ensure this acknowledgment reaches a broad
11 audience and achieves its strategic goals.

12 **2.1 National News Media**

13 **Initial Release:** The official statement will be distributed via national newswires (Associated Press,
14 Reuters) to ensure immediate and widespread coverage.

15 **Press Conference:** The Governor and Attorney General of California will hold a live, televised press
16 conference to read the statement and answer questions from the national press corps.

17 **Op-Eds:** Opinion pieces authored by the Governor will be submitted to top-tier national newspapers,
18 including:

- 19 • The New York Times

- 1 • The Wall Street Journal
- 2 • The Washington Post
- 3 • Major California newspapers

4 **2.2 Official Government Channels**

5 **Website Prominence:** A dedicated, easily accessible section featuring the statement, related
6 documents, and a video of the press conference will be placed on the homepage of:

- 7 • California Governor's Office website
- 8 • Secretary of State website
- 9 • Minimum display period: 180 days

10 **Official Publications:** The full statement will be published in the California Regulatory Notice
11 Register.

12 **2.3 High-Visibility Public Forums**

13 **Billboard Campaign:** A national digital and print billboard campaign will be launched featuring:

- 14 • Clear, concise message: "California Acknowledges Interference in the 2024 Election. Our
15 Democracy Demands Accountability."
- 16 • QR code linking to the full official statement online

17 **Key Locations:** Billboards will be secured in high-traffic areas including:

- 18 • Times Square, New York
- 19 • Washington, D.C.
- 20 • Los Angeles, CA

- 1 • Chicago, IL
- 2 • Other major media markets

3 **2.4 Social Media Campaign**

4 A coordinated campaign will run across all official State of California social media platforms (X,
5 Facebook, Instagram, etc.), featuring:

- 6 • Video of the Governor's statement
 - 7 • Infographics summarizing the acknowledgment
 - 8 • Links to the full text
 - 9 • Sustained messaging throughout campaign period
-

10 **3.0 STRATEGIC GOALS & METRICS**

11 The campaign is designed to achieve three specific, measurable objectives.

12 **Goal 1: National Reputation Repair**

13 **Objective:** To reverse the reputational damage and restore public perception of Mr. Tyler as a person of
14 integrity whose candidacy was unjustly harmed by state-level interference.

15 **Metrics:**

- 16 • Conduct pre- and post-campaign national polling to measure shifts in public opinion regarding
17 Mr. Tyler and the legitimacy of the 2024 election results
- 18 • Utilize media sentiment analysis tools to track the ratio of positive-to-negative mentions of Mr.
19 Tyler in media coverage

1 **Goal 2: Maintenance of Candidate Viability**

2 **Objective:** To ensure Mr. Tyler is perceived as a viable and legitimate presidential candidate by the
3 public, media, donors, and political establishment in light of the acknowledged interference.

4 **Metrics:**

- 5 • Monitor post-acknowledgment campaign fundraising data
- 6 • Track Mr. Tyler's polling numbers in future primary and general election scenarios
- 7 • Document the number of invitations received for national debates, town halls, and major media
8 interviews

9 **Goal 3: National Deterrence**

10 **Objective:** To prevent other states and government officials from engaging in similar unconstitutional
11 conduct against presidential candidates.

12 **Metrics:**

- 13 • Establish long-term tracking of litigation filed nationwide concerning the violation of
14 candidates' rights
- 15 • Commission an annual report from a non-partisan legal organization on state compliance with
16 federal election laws protecting candidate activities
-

17 **4.0 TIMELINE & PHASING**

18 The campaign will be executed in four distinct phases to maximize impact and ensure sustained
19 messaging.

1 **Phase 1 (Week 1): Campaign Launch**

2 **Day 1:**

- 3 • Distribute the official statement via newswires
- 4 • Hold the national press conference

5 **Days 1-2:**

- 6 • Launch the website and social media campaigns simultaneously with the press conference

7 **Day 5:**

- 8 • Submit op-eds for publication

9 **Phase 2 (Weeks 2-8): National Saturation**

10 **Week 2:**

- 11 • Launch the national billboard campaign

12 **Weeks 3-8:**

- 13 • Continue sustained social media messaging
- 14 • Governor's office grants interviews to select national media outlets to reinforce the message

15 **Phase 3 (Weeks 9-16): Monitoring and Analysis**

16 **Week 9:**

- 17 • Begin the first wave of post-campaign polling and media sentiment analysis

18 **Week 16:**

- Release a public report summarizing the initial results of the acknowledgment campaign and reaffirming the state's commitment

Phase 4 (Ongoing): Long-Term Commitment

Annually:

- Commission and publish the deterrence report on state compliance with election law to maintain public accountability
-

5.0 LEGAL AUTHORITY

5.1 Remedial Authority

Federal courts possess broad remedial authority to fashion appropriate relief for constitutional violations. **Swann v. Charlotte-Mecklenburg Bd. of Ed.**, 402 U.S. 1, 15-16 (1971).

5.2 Remedial Purposes

The requirement for official acknowledgment serves multiple established remedial purposes:

1. **Reputational Repair:** Addresses dignitary harm caused by systematic constitutional violations
2. **Deterrent Effect:** Creates accountability for government officials who violated federal civil rights laws
3. **Public Accountability:** Ensures government acknowledgment by the actual wrongdoers
4. **Educational Impact:** Promotes awareness through authoritative government admission of wrongdoing

1 **5.3 Authoritative Source Necessity**

2 Only acknowledgment from California state officials who perpetrated the violations can provide the
3 authoritative credibility necessary for reputation restoration. Third-party statements lack the necessary
4 weight for meaningful remedial effect.

5 **6.0 IMPLEMENTATION REQUIREMENTS**

6 **6.1 Responsible Officials**

- 7 • **Governor of California:** Primary spokesperson and press conference leader
8 • **Attorney General of California:** Co-spokesperson and legal authority representative
9 • **Secretary of State:** Administrative implementation and website maintenance

10 **6.2 Budget and Resources**

11 California state officials shall bear all costs associated with campaign implementation, including:

- 12 • Media production and distribution
13 • Billboard campaign expenses
14 • Website development and maintenance
15 • Polling and analysis costs
16 • Staff time and administrative expenses

17 **6.3 Monitoring and Compliance**

18 Ongoing oversight mechanism to ensure:

- 1 • Timely implementation of all campaign phases
 - 2 • Achievement of strategic goals and metrics
 - 3 • Sustained commitment to long-term deterrence objectives
 - 4 • Annual reporting on progress and outcomes
-

5 **This comprehensive public acknowledgment campaign serves as necessary remedial relief for**
6 **systematic constitutional violations while establishing meaningful deterrent against future**
7 **discrimination in electoral processes nationwide.**

8